
UNFINISHED BUSINESS

Bill No: SCA 1
Author: Newman (D), et al.
Amended: 8/19/24
Vote: 27

SENATE ELECTIONS & C.A. COMMITTEE: 6-1, 5/8/23
AYES: Glazer, Allen, McGuire, Menjivar, Newman, Umberg
NOES: Nguyen

SENATE APPROPRIATIONS COMMITTEE: 5-2, 9/1/23
AYES: Portantino, Ashby, Bradford, Wahab, Wiener
NOES: Jones, Seyarto

SENATE FLOOR: 31-7, 2/1/24
AYES: Allen, Alvarado-Gil, Archuleta, Ashby, Atkins, Becker, Blakespear,
Bradford, Caballero, Cortese, Dodd, Durazo, Eggman, Glazer, Hurtado, Laird,
Limón, McGuire, Menjivar, Min, Newman, Padilla, Roth, Rubio, Skinner,
Smallwood-Cuevas, Stern, Umberg, Wahab, Wiener, Wilk
NOES: Dahle, Grove, Jones, Nguyen, Niello, Ochoa Bogh, Seyarto
NO VOTE RECORDED: Gonzalez, Portantino

ASSEMBLY FLOOR: 59-17, 8/30/24 - See last page for vote

SUBJECT: Elections: recall of state officers

SOURCE: Secretary of State Shirley N. Weber, Ph.D.
California Common Cause
League of Women Voters of California

DIGEST: This constitutional amendment, if approved by voters, eliminates the successor election for a recalled state officer and would provide, in the event an officer is removed in a recall election, that the office will remain vacant until it is filled in accordance with existing law. This constitutional amendment also repeals the prohibition against the officer subject to the recall from being a candidate to fill

the office in a special election, but prohibits the appointment of the officer subject to the recall election to fill the vacancy.

Assembly Amendments added a requirement that the measure will appear on the ballot at the November 3, 2026, statewide general election if adopted by the Legislature.

ANALYSIS:

Existing law:

- 1) States, pursuant to the California Constitution, that the recall is the power of the voters to remove an elective officer.
- 2) Provides that a recall of a state officer is initiated by delivering to the Secretary of State (SOS) a petition alleging reason for recall. Provides that sufficiency of reason is not reviewable.
- 3) Provides that proponents have 160 days to file signed petitions. Provides that a petition to recall a statewide officer must be signed by electors equal in number to 12 percent of the last vote for the office, with signatures from each of five counties equal in number to one percent of the last vote for the office in the county. Requires that signatures to recall Senators, members of the Assembly, members of the Board of Equalization, and judges of courts of appeal and trial courts equal 20 percent of the last vote for the office. Requires the SOS maintain a continuous count of the signatures certified to that office.
- 4) Provides that an election to determine whether to recall an officer and, if appropriate, to elect a successor shall be called by the Governor and held not less than 60 days nor more than 80 days from the date of certification of sufficient signatures. Provides that a recall election may be conducted within 180 days from the date of certification of sufficient signatures in order that the election may be consolidated with the next regularly scheduled election occurring wholly or partially within the same jurisdiction in which the recall election is held, if the number of voters eligible to vote at that next regularly scheduled election equals at least 50 percent of all the voters eligible to vote at the recall election.
- 5) Provides that if the majority vote on the question is to recall, then the officer is removed. Provides that if there is a candidate who receives a plurality, they are the successor. Prohibits the targeted state officer from being a successor

candidate. Prohibits a successor candidacy for a judicial vacancy if the judge is recalled, as specified.

- 6) Requires the Legislature to provide for circulation, filing, certification of petitions, nomination of candidates, and the recall election.
- 7) Provides that if a recall of the Governor or SOS is initiated, the recall duties of that office shall be performed by the Lieutenant Governor or Controller, respectively.
- 8) Provides that a state officer who is not recalled shall be reimbursed by the State for the officer's recall election expenses legally and personally incurred. Prohibits another recall from being initiated against the officer until six months after the election.
- 9) Requires the Legislature to provide for the recall of local officers unless a county or city provides for recall within their respective charters.
- 10) Requires a local recall election to include only the question of whether the local elected officer should be removed from office, as specified. Prohibits the successor election for a local office from occurring at the same time as the recall election of a local elected officer, and requires the office, if a local officer is recalled, to become vacant until the position is filled according to existing law.

This constitutional amendment:

- 1) Eliminates the successor election for a recalled state officer and would provide, in the event an officer is removed in a recall election, that the office will remain vacant until it is filled in accordance with existing law. Repeals the prohibition against the officer subject to the recall from being a candidate to fill the office in a special election, but prohibits the appointment of the officer subject to the recall election to fill the vacancy.
- 2) Provides that if a recall of the Governor is initiated, the recall duties of that office shall be performed by the SOS instead of the Lieutenant Governor. Provides that if recalls of the Governor and SOS are initiated at the same time, the recall duties of both offices shall be performed by the Controller.

- 3) Requires, notwithstanding a specified section in the California Constitution, the Lieutenant Governor become Governor for the remainder of the unexpired term that if the Governor is removed from office by recall. Provides that if the Governor is removed from office by recall before the close of the nomination period for the next statewide election during the first two years of the Governor's term, a special election shall be called to replace the Governor, be consolidated with the statewide primary election, and, if necessary, the subsequent statewide general election. Provides that if a candidate receives a majority of the votes in the special election that is consolidated with the statewide primary election, that candidate shall become Governor for the remainder of the unexpired term. Provides that if no candidate receives a majority of the votes, the top two vote-getters shall compete in a special election consolidated with the subsequent statewide general election, and the winner of that election shall become Governor for the remainder of the unexpired term.
- 4) Requires this constitutional amendment to appear on the ballot at the November 3, 2026, statewide general election.
- 5) Makes corresponding formatting changes.

Background

Informational Recall Hearings. During the 2021-22 legislative session, the Assembly Elections Committee and the Senate Elections & Constitutional Amendments Committee held a series of joint informational hearings to review California's recall process following the previous gubernatorial recall election.

At the first hearing on October 28, 2021, the committees heard from current and former elected officials, elections experts, and academics about their perspectives on the state's recall process and different reform proposals, including increasing the number of signatures for qualifying a statewide recall and changing the method for selecting the successor to a recalled official.

At the second hearing on December 6, 2021, the committees heard from two panels of expert witnesses. The first panel of academics examined a restriction used in several states which only allows recalls to be initiated against an official for certain enumerated causes. The second panel of experts and local elected officials discussed the use of the recall at the local level, along with potential options for reform.

At the third and final recall informational hearing on February 1, 2022, the committees heard from the SOS who shared recommendations for improvements on the state recall process based on her consultation with outside experts and stakeholders.

One of the major takeaways from the committee’s first two hearings was that many of the recall reform proposals would require voter approval in order to take effect. In particular, proposals to make significant structural changes to the recall process at the state level generally require an amendment to the California Constitution. By contrast, changes to the process for recalling local elected officials and certain procedural changes to the state process can be made through statutory changes alone. The third hearing generally reinforced the importance of continuing to evaluate California’s recall processes and that California voters generally support reform of the recall process, but are against any changes to the recall procedure or process that diminish or decrease the voter’s power to recall an elected official.

Recent Changes to Local Recall Elections. In 2022, the Legislature passed and Governor Newsom signed AB 2582 (Bennett, Chapter 790, Statutes of 2022). AB 2582 made changes to the two-question process for the recall of local officers in jurisdictions that do not have a charter providing for recall. Specifically, AB 2582 removed the successor candidate question, so that the election for a local officer only includes the question of whether the officer sought to be recalled shall be removed from office.

History of Recall Elections. According to the SOS, since 1913 there have been 179 recall attempts of state elected officials in California (trial court judges are considered local officials for the purposes of state statutes governing recalls and are not included in these figures). Eleven recall efforts collected enough signatures to qualify for the ballot. Of the 11 recall elections, the elected official was recalled in six instances. Below is a list of recall attempts of state officials that have qualified for the ballot and the outcome of the election:

Year	Officer	Outcome
1913	Senator Marshall Black	Recalled
1913	Senator Edwin E. Grant	Recalled
1914	Senator James C. Owens	Unsuccessful
1994	Senator David Roberti	Unsuccessful
1994	Assemblymember Michael Machado	Unsuccessful
1994	Assemblymember Paul Horcher	Recalled

1995	Assemblymember Doris Allen	Recalled
2003	Governor Gray Davis	Recalled
2007	Senator Jeffrey Denham	Unsuccessful
2018	Senator Josh Newman	Recalled
2021	Governor Gavin Newsom	Unsuccessful

Little Hoover Commission. The Little Hoover Commission (LHC) launched a study in 2021 to consider whether the state’s system for recalling state office-holders should be changed, and if so, how. In its 2022 report, the LHC concluded that the recall system should be retained, both because it is substantively valuable – voters should be able to fire an elected official mid-term – and because it is overwhelmingly popular with voters. However, the report also concluded that substantial changes are needed in California’s recall process.

According to the report, current recall procedures breed the possibility of an undemocratic outcome since they allow a replacement candidate to win office while receiving fewer votes than the incumbent. There is also concern that the recall is subject to potential overuse or abuse. The report made various recommendations, including replacing the existing two-part recall ballot with a “snap” special election in which the official targeted for recall is placed on the ballot with all replacement candidates.

Comments

Author’s Statement. According to the author, “California’s recall provisions were conceived of and enacted more than 110 years ago. Obviously, the world has changed quite a bit since then, and sadly, politics is no exception. The system in its current form offers bad actors an incentive to target an elected official with whom they disagree and to have the official replaced by someone who otherwise would not enjoy the support of a majority of voters. SCA 1 will ensure that statewide and legislative recalls in California are democratic, fair, and not subject to political gamesmanship. This constitutional amendment will adjust how state-level recall elections are conducted, so that only one question will appear on a recall ballot, asking a voter to decide whether or not an elected official should be recalled from office. If a recall is successful, the official will be replaced in the manner consistent with existing law if the official were to leave office for any other reason.”

Related/Prior Legislation

AB 2582 (Bennett, Chapter 790, Statutes of 2022) changed the two-question process for the recall of local officers in jurisdictions that do not have a charter providing for recall by removing the successor candidate question from the recall question, so that the election for a local officer to only include the question of whether the officer sought to be recalled shall be removed from office and, if successful, if filled by existing laws for vacated offices.

AB 2584 (Berman, Chapter 791, Statutes of 2022) increased the total number of proponents required to be included on a notice of intention to recall an elected officer, established a public display period for local recall petitions, authorized a voter to seek a writ of mandate or injunction requiring any or all of the statement of the proponents or answer of the officer to be amended or deleted on a recall petition, required a petition for the recall of a school board member to contain a fiscal estimate of the cost for conducting the recall election, and changed the timeframe for when a qualified local recall election is held.

SCA 3 (Allen, 2022) would have eliminated the first question on the recall ballot that asks whether a state official should be recalled, and instead automatically places the incumbent's name on the recall ballot along with any potential replacement candidates running for the office. If the incumbent receives a plurality of the vote, the recall fails, and if a replacement candidate receives a plurality, the recall succeeds and that candidate is elected.

SCA 6 (Newman, 2022), substantially similar to this measure, would have eliminated the second question on the recall ballot that asks which candidate should replace the recalled official, and instead generally requires the office, if the state officer is recalled, to become vacant and to be filled in accordance with existing law.

FISCAL EFFECT: Appropriation: No Fiscal Com.: Yes Local: No

According to the Assembly Appropriations Committee:

- 1) One-time costs of approximately \$203,000 to the SOS for system modifications to California's centralized voter registration database (VoteCal) to reflect revised recall procedures (General Fund (GF)). VoteCal updates include design and coding changes to add a new contest type with unique processing and reporting requirements.
- 2) One-time costs of approximately \$738,000 to \$984,000 to the SOS for printing and mailing expenses associated with placing the measure on the ballot at the

next statewide election (GF). Based on the average cost per page for prior elections, the SOS estimates such costs to be approximately \$123,000 per page for six to eight pages in the state voter information guide, although actual costs related to this measure will depend on the length of the title and summary, analysis by the Legislative Analyst's Office, proponent and opponent arguments, and text of the proposal.

- 3) Costs of an unknown, but likely minor and absorbable, amount to the SOS and Controller to assume recall duties from another office.

According to the Legislative Analyst's Office, the GF faces a structural deficit in the tens of billions of dollars over the next several fiscal years.

SUPPORT: (Verified 8/26/224)

Secretary of State Shirley N. Weber, Ph.D. (co-source)
California Common Cause (co-source)
League of Women Voters of California (cosource)
Lieutenant Governor Eleni Kounalakis
Culver City Democratic Club
Indivisible CA: StateStrong
Santa Monica Democratic Club

OPPOSITION: (Verified 8/26/24)

Election Integrity Project California, Inc.
12 Individuals

ASSEMBLY FLOOR: 59-17, 8/30/24

AYES: Addis, Aguiar-Curry, Alvarez, Arambula, Bains, Bauer-Kahan, Bennett, Berman, Boerner, Bonta, Bryan, Calderon, Juan Carrillo, Wendy Carrillo, Connolly, Mike Fong, Friedman, Gabriel, Garcia, Gipson, Grayson, Haney, Hart, Holden, Irwin, Jackson, Jones-Sawyer, Kalra, Lee, Low, Lowenthal, Maienschein, McCarty, McKinnor, Muratsuchi, Stephanie Nguyen, Pacheco, Papan, Pellerin, Petrie-Norris, Quirk-Silva, Ramos, Rendon, Reyes, Luz Rivas, Rodriguez, Blanca Rubio, Santiago, Schiavo, Soria, Ting, Valencia, Villapudua, Ward, Weber, Wicks, Wood, Zbur, Robert Rivas

NOES: Alanis, Chen, Megan Dahle, Davies, Dixon, Essayli, Flora, Gallagher, Hoover, Lackey, Mathis, Jim Patterson, Joe Patterson, Sanchez, Ta, Waldron, Wallis

NO VOTE RECORDED: Cervantes, Ortega, Wilson

Prepared by: Scott Matsumoto / E. & C.A. / (916) 651-4106
8/31/24 12:47:47

****** END ******